

Sultan Khan v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 1 August 2017 · 2017 SCC OnLine All 2246 · Writ - C No. 33710 of 2017 · **Writ petition disposed of; Executive Engineer to decide the instalment application under Clause 6.14**

HEADNOTE

Where the consumer does not dispute the electricity dues and only seeks to pay them in instalments, the matter is one for the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The Court disposed of the petition directing the Executive Engineer to pass an appropriate order on the consumer's instalment application under Clause 6.14 within four weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalment facility for undisputed dues to be decided by the Executive Engineer

QUESTION

Where the consumer accepts the dues and seeks instalments, who decides?

HOLDING

The Executive Engineer, under Clause 6.14, is to consider and pass an appropriate order on the instalment application within four weeks; the dues being undisputed, no other issue arises. ¶ 2-4

LIMITING FACTS

Consumer did not dispute the dues; sought only fixation of instalments.

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress An instalment request for undisputed dues is for the Executive Engineer under Clause 6.14. ¶ 4